Prima Facie

By Suzie Miller

In the police station the morning after the rape.

TESSA: **(Scene 9)** I'm led into an interview room. I've only ever seen video footage of rooms like this one. Watching a client's interrogation while sitting with my feet on the desk in chambers. All my sass and outrage at the police tricks played. It's different when you're in here. I'm cold, shivering. I want to ask for a woman, I need to. But I just want to get it over with. *(The questions start; we hear only Tessa's answers)*

Tessa Jane Ensler. *(beat)* I wanted to report – Because I think – Because I WAS… Something happened. To me. I was sexually assaulted. And I want to – *(beat)* Julian Brookes. *(beat)* No, we work together. *(beat)* I don't know, about five years. *(beat)* Um. A relationship? Tonight wasn't the first time we'd. . . been together but we weren't – no, not a 'relationship'.

Then I have to describe the rape. I don't want to be a victim, damaged. Nope. No, I want to be a survivor, but. . . I don't know. I don't know. Humiliation. Distress. What did I do wrong? Was I foolish? What should I have done?

(Scene 11) My phone beeps. A text. Oh god. It's him. It's Julian: ***"Hope you're okay after everything? I'm heading off."*** -- *(to audience)* After everything? Is he worried about what he did? What if I'm overreacting? I'm not. I'm not. *(beat)* Julian can't just get away with it! Can he? Pretend it didn't happen? **(Scene 14)** I'm terrified, how will I ever go back to work – with Julian there?

INTRODUCTION

Tessa Ensler loves her job – fighting to defend those pleading not guilty. Gaining freedom for men accused of rape and sexual assault. Innocence until proven guilty is, after all, the bedrock of a civilized society. But when Tessa is raped by a coworker, she is forced to confront the stark reality that the law was not written for victims, and that she is the one on trial.

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TESSA: **(Scene 7)** *(flashback to the rape)* Jules meets me at the Japanese place on the corner. We talk work, life, books, everything, pour sake for each other. We leave. Pick up some wine, grab gelato from the posh place up the road. When we get in, we both grab a spoon and dig into the gelato box together, feeding each other. We kiss. We drink some more. We move into my room, head to the bed, we seem to fall into having sex. It's nice, until . . . I feel this, this overwhelming desire to vomit.

I feel everything hideous. Vomiting. The dank smell of the toilet bowl. I must have been there for. . . a while. I feel him carry me to the bed. Julian's face kissing mine. I can't kiss like this. I still feel ill. He's on top of me but his hand is on my face. *(to Julian)* Hang on . . . No. I can't breathe. Stop! *(to audience)* And . . . and he's inside me, it's rough and painful. *(re-living the memory)* This is not happening. Not happening. But I can't scream, his hand is over my mouth. I try to bite his hand, I writhe around and try and kick him, I can't breathe properly. It goes on and on. Searing pain inside of me. I am crying silently. And there is just this strange denial, Julian slumped on top of me. I struggle out of the bed, I vomit and vomit and vomit. Then I brush my teeth. I scrub my body. *(long pause)*

(using her 'court' voice) **'Did you invite him to your home, to your bed?'** *(to audience)* I see my life, the one I have built, my career. My ***career!*** . . . What do I do now? Be a witness in my own courtroom?

(Scene 3) *(flashback)* First day, University law school. Cambridge. 200 faces. Society tells us that law school means you're important. The dean stands, telling us

DEAN: You are the ones who will change the country. *(beat)* But. . . Look to your left. Look to your right. Look back at me and hear this. One of the three of you will not make it -- you will fail. You are not friends, you're fighting each other. The game starts now.

Never assume anyone is telling you the truth – even yourself. There is no ***real*** truth, only ***legal*** truth. Don't trust your gut instincts. You will get it wrong if you think you know what will happen. *(beat)*

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TESSA: **(Scene 4)** The law is there to protect everyone. Protect those who accuse, protect those who ***are*** accused. Just test the law. Test it. Test it. But there's always that question: How do you act for someone you ***KNOW*** did it!? A lawyer's job is not that grand – uh uh – the job is not to ***KNOW***. It's to ***NOT*** know. My role is defense, the prosecutor prosecutes; we each tell a story and the judge and the jury ***DECIDES*** which story they believe. **(Scene 6)** In sexual assault cases it's usually just one person's word against another's. Yes, the sex act happened; but was it consensual? The defense doesn't have to prove she ***did*** consent; you just have to point out that HE DID NOT KNOW there was NO CONSENT.

I remember this one case. This woman, Jenna, looked me square in the face and said 'I'm not getting anything out of this, I don't want to be here. I'm just doing this to protect other women from this man.' *(beat)* My job is to point out holes in the story. I her version of the story in court. Jenna lost. *(beat)* [But] What if he did it? I got him off. Shit. Can't think like that, the prosecutor should have done a better job!

(Scene 8) *(The courtroom -- Tessa is different now. Less articulate. Less confident. She gets worse once the cross-examination begins)* This is me, Tessa Ensler, without my barrister robe. This is what it feels like. Same court, no armour. I've been waiting for 782 days, since that first day at [the police station] and now today is the day. Three years at university, one year of bar school, and seven years of practice. I have always believed that before the law there is justice.

(Scene 11) My life is in the hands of the police, the CPS, the court system. I have no control. But there's this person inside me, the girl who fought and fought to be seen. Look left, look right, who won't make it? She's brave and if I do nothing, I think I could lose her. **(Scene 12)** Berating myself: 'You didn't scream or kick enough. -- You froze, in the middle of it all you just froze – what's wrong with you? -- Julian's a good barrister, he does lots of pro bono work, what are you doing to him? -- What if he really thought you were consenting?'

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(arguing with herself) The law says you can't do this to a woman. Can't hold her down, ignore her, keep her trapped while you push – while you, you, push yourself inside of her. You can't rape and then pretend it was consensual. Can you!?

(to audience) The trial will run for three days. And it is only ***me*** giving evidence, not Julian. Today Julian is pleading not guilty. But Julian is not stupid, he's just convinced himself and all the people he has asked to write letters of support for him that I am lying. He has convinced himself he is the victim. While I'm forced to relive it all ***IN FRONT OF EVERYONE.*** Why? He is the one who did this to me; but I'm the one on trial. **(Scene 13)** Julian's able to listen to everything -- sitting back knowing he will not have to say a word. **(Scene 14)** *(in anguish)* You raped me. You held me down and . . .

(Flashback to days after the rape in the court foyer) I have to face Julian after he's been arrested. Court foyer.

JULIAN: *(to Tessa)* How could you do this to me? I held your hair while you vomited for christsakes. Are you out of your mind?

TESSA: You know what happened.

JULIAN: Whatever it was, I'm not a criminal, Tessa. And God, you're not a victim or anything! You'll destroy my career.

TESSA: *(end flashback - in court)* In my head I'm cross-examining myself, using my own defense skills to doubt my own story. I realize I have been doing this for two years and fifty-two days. Finding fault in my story.

DEAN: **(Scene 3)** *(echoing in her head)* There is no ***real*** truth, only ***legal*** truth.

TESSA: **(Scene 15)** *(arguing with herself)* I will not question my memory. I will not minimize what happened, I will not embellish. I know what happened that night.

PROSECUTOR: Did you make it clear to Mr Brookes you were not consenting to sex?

TESSA: I did. I told him no. Stop. I . . . I tried to push him away.

PROSECUTOR: Did you . . . scream?

TESSA: I tried but his hand was over my mouth. *(to audience)* More questions. More details. More humiliation. This is me, giving my testimony in court. [Then] the defense

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counsel stands slowly. This is it. The cross-examination. **(Scene 16)** And I realize they're trying to say that I was mistaken, I wasn't actually pinned down, and of course I could breathe. In fact, the hand on my mouth must have been mine, saving him from my bad vomit breath.

(to defense attorney) No. No. I tried to get away. I said no, I struggled. It was ***his*** hand on my mouth. *(to audience)* I can feel a terrible wrong being done to me right now. This line of questioning is making me look confused. Because I am, I am, I'm really confused. And then I remember. Right there in court, I remember. *(to defense attorney with clarity, body and voice shaking)* Julian had both of my wrists in one of his hands, pulled high above my head. And his other hand over my mouth and my nose – I could barely breathe. *(to audience)* My eyes on Julian now. How dare you? How ***dare*** you?

(Scene 17) *(finding her voice, she speaks to the jury directly)* Julian Brookes' council will tell you, the jury, about what Mr. Brookes might have lost. But I will tell you what **I** have lost; I have lost my dignity and my sense of self. I have lost my career path, friends, peace of mind, my safety. But most of all, I have lost my faith in the law, the system I believed would protect me. The system I dedicated my life to. *(to audience)* After 782 days, I have found my voice. It's a different voice, but it's mine. Confident. Like a lawyer. *(takes breath slowly; in and out)* I see all the women who came before me and the ones who will come after. I see Jenna.

JENNA: I'm not getting anything out of this, I'm just doing this to protect other women.

TESSA: *(to the jury)* I am here in a unique position. Usually I stand at the bar, but now I am in this courtroom as a witness -- a victim. I have questioned women in sexual assault cases on the assumption that the evidence can be delivered in a clean, logical package. But now I have seen through my own attempts that it can't be. The experience of sexual assault is not remembered in a neat, consistent, scientific parcel. And because of that, the law often finds the evidence "unbelievable."

All my professional life I have participated in a system that has done this to women. I have suggested time and time again that a witness can be "mistaken" in their

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evidence. ***Before*** I would suggest that "she was confused." I would point out inconsistencies as proof of doubt -- would tell the jury they couldn't possibly be "sure." *(beat)* Now I know, this is not right. This is not "reasonable." Now I know that when a woman says "no," when her actions say "no," it is not a subtle unreadable thing at all. When a woman has been violated, it is a corrosive wound, one that begins with terror and pain deep in the body, then overtakes the mind, the soul. As a victim-survivor, the rape and perpetrator are vividly recalled -- the peripheral details not so clearly. If a woman is rattled by re-living the nightmare in court, if a woman's experience of the rape is not the way the court likes it to be, then we conclude that she is prone to exaggeration. And it is because of this that she is so often disbelieved. So here in court, I want to call it out.

The law of sexual assault spins on the wrong axis. A woman's experience of sexual assault does not fit the male-defined system of truth. So, it cannot be truth -- cannot be justice. The law has been shaped by generations and generations of men. *(beat)* There was a time, not so long ago, when courts did not "see" non-consensual sex in marriage as rape, did not "see" that battered women fight back in a manner distinct from the way men fight. Yet once we "see" we cannot "unsee" can we? Now I "see" through my own experience.

We have it all wrong when it comes to sexual assault. [But] the law is defined by ***us***, constructed by ***us***, in light of ***all*** of our experiences. The truth is that one in every three women are sexually assaulted, and their voices need to be heard. They need to be believed, for justice to be done. *(to audience)* One in three women. Look to your left, look to your right, one of us… *(beat)* I know the jury won't find Julian guilty. But a weight has been lifted. **(Scene 18)** I am broken. But I am still here. And I will not be silenced.

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SOURCE INFORMATION

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AWARD HISTORY

2023 National Qualifier
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